

Article 20
Amend Zoning Bylaws: § V-F Removal of Earth Products
(Planning Board)

ARTICLE LANGUAGE

To see if the Town will vote to amend the Natick Zoning Bylaws by amending § V-F Removal of Earth Products; and further amend any other associated sections, where applicable; or otherwise act thereon.

PURPOSE OF THE ARTICLE

To amend the Natick Zoning Bylaws by amending § V-F Removal of Earth Products; and further amend any other associated sections, where applicable; or otherwise act thereon.

FINANCE COMMITTEE RECOMMENDATION

The Finance Committee took the following action:	RECOMMENDATION:	Favorable
	QUANTUM OF VOTE:	8-5-0
	DATE VOTED:	9/30/2025

MOTION (Requires a 2/3rds Vote)

Move that the Town vote to amend Section V-F Removal of Earth Products of the Natick Zoning Bylaws by

- deleting the words “Building Inspector” after the words “... except that the removal of said material may be permitted subject to the issuance of a building permit by the ...” and before the words “and only to the extent of excavating for the building foundation...” and replacing with the words “Building Commissioner”;
- deleting the second paragraph which reads “Pre-existing use of premises for the excavation or removal of sand and gravel can be continued and extended throughout the premises. Opening of new sand or gravel pits may be authorized by the Board of Appeals by special permit provided such excavations are not harmful or detrimental to the neighborhood. The Board of Appeals may impose time limitations and may require bonds and a continuation of such special permit may be conditioned upon compliance with the regulations to be made and amended from time to time.” in its entirety; and further
- deleting the first sentence of the third paragraph that reads “In no case shall said material be removed from the Town.”

to read as follows

“In any district except an authorized sand or gravel pit the removal from the property of soil, loam, sod, peat, sand or gravel is prohibited, except that the removal of said material may be permitted subject to

the issuance of a building permit by the Building Commissioner and only to the extent of excavating for a building foundation, structure, roadway, driveway, walk, or parking area and only if at least an eight-inch layer of packed loam or the total loam and topsoil excavated in the project, whichever is less, is left covering all regraded area of the lot.

Removal of topsoil other than specifically permitted in this by-law is classified as stripping and is prohibited. (Art. 51 A.T.M. 1974)" .